

IN THE SUPREME COURT OF PAKISTAN

(Review Jurisdiction)

Present:

Justice Muhammad Hashim Khan Kakar
Justice Salahuddin Panhwar
Justice Ishtiaq Ibrahim

CRL. REVIEW PETITION NO. 48 OF 2016 IN CRIMINAL APPEAL NO.264 OF 2006.

(Review against judgment dated 20.01.2016 passed by this
Court in Crl. Appeal No.264/2006)

Anwar Saif Ullah Khan

...Petitioner

Versus

The State

...Respondent

For the Petitioner: : Mr. Khawaja Haris Ahmed, Sr. ASC.

For the Respondents: : Mr. Nasir Mehmood Mughal, DPG NAB.
a/w Ms. Amber, Spl. Prosecutor, NAB.

Assistance: : Muhammad Subhan Malik
(Judicial Law Clerk, SCP)

Date of Hearing : 03.02.2026

JUDGMENT

Salahuddin Panhwar, J.- Through this petition under Article 188 of the Constitution of the Islamic Republic of Pakistan, 1973, the petitioner seeks review of the majority judgment dated 20.01.2016 rendered in Criminal Appeal No. 264 of 2006, whereby the appeal was allowed, the acquittal of the learned Lahore High Court dated 13.06.2002 in Criminal Appeal No. 1912 of 2000 was set aside, and the conviction recorded by the trial Court on 30.11.2000 in NAB Reference No. 4-B/1999 was restored with modification of remitting the fine.

2. The brief facts are that the petitioner, who at the relevant time was serving as the Federal Minister for Petroleum and Natural Resources, was prosecuted through Reference No. 4-B/1999 before the Accountability Court, Lahore, on allegations of facilitating and approving appointments in OGDCL during 1996 by relaxing the applicable rules, thereby allegedly misusing his authority. The learned Accountability Court convicted the petitioner, sentencing him to one year of imprisonment, a fine of Rs. 5,000,000/- (with the benefit of Section 382-B, Cr.P.C.) and disqualification. On appeal, the Lahore High Court, by a reasoned judgment dated 13.06.2002, reappraised the entire record, including the testimony of seven prosecution witnesses, the documentary evidence, and the statement of the petitioner under Section 340(2), Cr.P.C., and acquitted him. The State preferred Criminal Appeal No.264 of 2006, which was allowed by this Court by majority on 20.01.2016, thereby restoring the conviction with modification of remitting the fine. It is that majority judgment which is now assailed before us in review.

3. Learned counsel for the petitioner has argued that the impugned conviction is legally unsustainable on several interconnected grounds: (i) the acts complained of took place in October 1996, and the application of Section 9(a)(vi) read with Section 14(d) of the NAO, 1999 offends Article 12 of the Constitution, which interdicts retrospective penal liability; the governing regime at the relevant time was Section 3(2)(e) of the Holders of Representative Offices (Punishment for Misconduct) Order, 1997 [President's (Post Proclamation) Order No.16 of 1977] hereinafter referred to as "PPPO" and, from 18.11.1996 onwards, Section 3(1)(d) of the Ehtesab Ordinance, 1996, neither of which could be replaced with a later statute of greater severity; (ii) this Court, while reversing the acquittal, overlooked the evidentiary record and rested its conclusions on a narrow extract of internal notings of "just three pages," without correlating the same with the

depositions and cross-examinations of the concerned officials, the defence evidence, or the statement of the petitioner under Section 340(2), Cr.P.C.; (iii) the settled principles governing appellate interference with acquittals were misconstrued, inasmuch as the view taken by the High Court was, at the very least, a reasonably possible view on the evidence; (iv) the prosecution had failed to establish any bribe, any *quid pro quo*, any pressure exerted upon OGDCL, any absence of vacancies, any incompetence on the part of the appointees, or any displacement of meritorious candidates, and the applicable Service Regulations were never produced before the Court; and (v) the essential element of *mens rea* remained unproved throughout. Learned counsel has accordingly prayed that the majority judgment of this Court be reviewed and set aside.

4. Conversely, the learned DPG NAB has supported the majority judgment, submitting that the petitioner, being a Holder of Public Office, had impermissibly intervened in the appointment process to extend undue favour to persons of his choice; that, under the accountability regime, misuse of authority does not require proof of pecuniary gain; that the internal notings sufficiently demonstrate a willful relaxation of rules to the detriment of institutional interests; and that the High Court erred in diluting clear and cogent documentary evidence. He has accordingly prayed for dismissal of the Review Petition.

5. We have heard learned counsel for the parties at length and, with their able assistance, have examined the record with care. Before coming to the substance of the controversy, it is necessary to recall the true scope and character of the review jurisdiction of this Court in a criminal matter. There is no cavil with the proposition, repeatedly affirmed in a plethora of precedents of this Court, that the jurisdiction of review is not to be invoked as a matter of course. It is circumscribed and narrow, and it is neither a rehearing nor an appeal in disguise. It is, however, not toothless.

Where an error is apparent on the face of the record, one that is self-evident, that does not depend upon elaborate reasoning or fresh appreciation of evidence, and that strikes at the very root of the judgment, this Court not only has the power but also the duty to correct it. In ***Mobashar Ahmad v. Federation of Pakistan (PLD 2010 SC 265)***, it was held that such an error must be manifest and must not be dependent on elaborate reasoning. The principle is equally well settled that where the challenged judgment proceeds upon the misapplication of a constitutional provision, upon the non-reading or misreading of material evidence, or upon a departure from settled principles of criminal jurisprudence, requirements of Article 188 of the Constitution stand satisfied. The reason is plain: the finality of a judgment of this Court is a value of the highest constitutional order, but it is not an absolute value. It must yield where its preservation would perpetuate a conviction resting upon an unconstitutional foundation, or a patent legal error, or a manifest injustice that cannot be remedied by any other means. The present case, as the discussion that follows will disclose, presents precisely such a combination of errors, both legal and factual, which can by no means be allowed to stand.

6. The first and most fundamental error lies in the misapplication of the penal law itself. The acts alleged against the petitioner pertain to the year 1996. At that time, the governing legal regime was not the National Accountability Ordinance, 1999, which did not then exist; it came into being only three years later. Yet the conviction has ultimately been sustained under Section 9(a)(vi) read with Section 14(d) of the NAO, 1999. This places the conviction in direct conflict with Article 12(1)(b) of the Constitution, which is reproduced as under:

“12. Protection against retrospective punishment.— (1) No law shall authorize the punishment of a person:

(a) for an act or omission that was not punishable by law at the time of the act or omission; or

(b) for an offence by a penalty greater than, or of a kind different from, the penalty prescribed by law for that offence at the time the offence was committed.”

It declares in unequivocal terms that no law shall authorize the punishment of a person for an act or omission that was not punishable by law at the time of the act or omission, or for an offence carrying a penalty greater than, or different from, the penalty prescribed by law at that time. The instant case squarely falls within the latter, since the provision under which the petitioner was convicted, carried a punishment of fourteen years, whereas the preceding two statutes carried punishment of seven years each for similar offence. There is no cavil, whether the said acts were punishable prior to NAO, 1999, or not, as similar definition was carried on in all three statutes and we can safely hold that it was an offence prior to the NAO, 1999. The actual controversy is in regards to the punishment where the NAO, 1999 carries greater punishment than the previous laws. It is immaterial that the Court convicted the accused under a statute prescribing a higher penalty, yet awarded a sentence within the maximum limits of the earlier laws. In the present case, although the petitioner was sentenced to simple imprisonment for one year, well within the maximum punishment prescribed under the two preceding enactments, the language of Article 12(1)(b) of the Constitution is explicit in that “**no law shall authorize...**”. Since Section 10(a) of the National Accountability Ordinance, 1999, which prescribes punishment for offences under Section 9(a)(iv), authorizes a penalty more severe than that which existed previously, recourse to such provision constitutes a violation of the constitutional mandate. Now addressing the apparent grey area and the contention that this

approach would allow accused persons to escape liability in such scenario, it is pertinent to note that the alleged occurrence took place in 1996, the reference followed in 1997, yet the charge was framed as late as 2000. Such delay invites scrutiny as to whether the fault lies in the statutory framework or in the prosecution's handling of the case. Additionally, the period of 1996-2000, carried three different political tenures, the possibility of the case being politically motivated can never be ruled out.

7. Article 12 is not a rule of convenience; it is a substantive fundamental right enshrined in Chapter I of Part II of the Constitution. It embodies the ancient maxim ***“nullum crimen, nulla poena sine lege praevia”***, no crime and no punishment without prior law. It also applies in a situation where, though it was previously a crime, but the punishment under the newly notified enactment was greater than the one provided in the previous law. As a non-derogable guarantee, it prohibits retrospective criminality and operates as an absolute bar on both the legislature and the courts. This principle is also reflected in Islamic jurisprudence. Allah Almighty states in the Qur'an: ***“And We would never punish a people until We have sent a messenger to warn them” (17:15, Surah Al-Isra)***. This establishes a foundational rule of justice: punishment is contingent upon prior communication of the law. Accordingly, retrospective punishment is impermissible, as liability of a specific charge arises only after the law has been enacted and duly conveyed. In practical terms, this means that individuals cannot be held accountable for actions committed before a relevant prohibition or obligation was imposed and consequently made known to them. This aligns with the broader legal maxim that there is no culpability without prior notice, typically ensured through publication in the official gazette, thereby safeguarding fairness and preventing arbitrary punishment. Although Section 2 of the NAO, 1999 purports to operate retrospectively from 01.01.1985, the decision of this Court

in ***Asfandiyar Wali v. Federation of Pakistan (PLD 2001 SC 607)*** establishes that Article 12 does not curtail the competence of the Legislature to enact laws having retrospective effect for all purposes, but it does prohibit, in the clearest possible terms, the imposition of criminal liability where, at the time of the act or omission, no offence or penalty existed in law, or where the later law seeks to impose a punishment greater in degree or different in kind from that which was prescribed when the offence was allegedly committed. The distinction is constitutional, not merely technical. A legislature may declare the general applicability of a statute to earlier periods; it may not, however, do so where the effect would be to fasten criminal guilt retrospectively. The moment the retrospective clause of a penal statute encounters the Article 12 barrier, the clause must yield and the barrier must prevail.

The majority judgment, in substance, proceeded upon the misuse-of-authority framework of the NAO, 1999 together with its evidentiary presumption, without first resolving the Article 12 bar that stood across its path. The dissenting opinion correctly identified Section 3(2)(e) of the PPPO, and, from 18.11.1996 onwards, Section 3(1)(d) of the Ehtesab Ordinance, 1996, as the relevant offences governing the conduct complained of. The application of the NAO, 1999, which carried a greater penalty on similar offence is therefore constitutionally impermissible, and the conviction rests upon a legal foundation that the Constitution itself forbids. It has been noted by us with grave concern that, on the one hand, the proceedings are acknowledged to have originated under an earlier legal framework, and, on the other, the conviction is sustained under a later statute carrying a heavier penalty and a different evidentiary presumption. This duality is not a matter of form. It goes to the very root of criminal liability. A conviction of this Court, of all courts, must rest upon a clear and consistent legal foundation. Where, as here, the very question of the applicable statute has been left unresolved, and where the resolution that has

in fact been adopted is in collision with a fundamental right, the error is not merely apparent; it is patent, and it is of a kind that this Court cannot, consistently with its oath to preserve, protect and defend the Constitution, allow to stand.

8. Closely allied to the Article 12 guarantee, and reinforcing it, is the settled rule that penal statutes must be construed strictly and in favor of the subject. Where two readings of a penal provision are reasonably open, and one of them would produce a result consistent with the Constitution while the other would produce a constitutional violation, the former must prevail. This is not a rule of grace extended to accused persons; it is a rule of constitutional necessity, flowing directly from the guarantees of due process, equal protection and personal liberty enshrined in Articles 4, 9, 10-A and 25 of the Constitution. The rule of strict construction is an expression, in the field of statutory interpretation, of the same principle that animates Article 12 in the field of temporal application. Both insist that none shall be subjected to criminal consequences save upon the clearest foundation in law. Applied to the present case, these twin rules yield an unmistakable conclusion. Where the conduct in question was, at the time it occurred, governed by the 1977 Order and thereafter by the Ehtesab Ordinance, 1996, and where the later invocation of the NAO, 1999 would enlarge the scope of criminality, heighten the punishment, and shift the evidentiary burden against the accused, the later statute cannot be pressed into service. The State does not enjoy an unfettered discretion to invoke any law of its choosing in prosecution; it is bound to proceed strictly in accordance with the provisions applicable, from which no departure is permissible. To do so would be to convert a fundamental right into a procedural formality, and to permit the state to rewrite the rules of criminal liability after the event making it violative of the maxim “**communi observantia non est recedendum**”. To be very clear, the Constitution does not admit of such a course.

9. The next error pertains to the appreciation of evidence. It is trite, and hardly needs restatement, that a court of law must consider the entirety of the evidentiary record, both prosecution and defence, before arriving at a conclusion adverse to the accused. The record in the present case shows that the petitioner produced substantial defence material and subjected the prosecution witnesses to a thorough cross-examination. Yet the impugned judgment appears to have relied selectively upon portions of the prosecution case while disregarding material aspects of the defence, and in particular, to have drawn sweeping inferences from a limited extract of internal file notings without placing those notings in juxtaposition with the oral testimony, the departmental practice, and the statement of the petitioner under Section 340(2), Cr.P.C. It is well settled that the misreading or non-reading of material evidence constitutes an error apparent on the face of the record and, where such misreading or non-reading has had a material bearing upon the ultimate conclusion, it squarely attracts the review jurisdiction of this Court. The sanctity of criminal adjudication demands that every piece of evidence bearing upon the guilt or innocence of the accused receive the attention of the Court, and that no inference adverse to the accused be drawn upon a partial view of the record. Where the contrary has been done, the resulting conviction is not an exercise of judicial discretion capable of two views; it is a legally vitiated conclusion that cannot be permitted to rest.

10. The prosecution did not produce the OGDCL Service Regulations said to govern temporary appointments; indeed, the record reflects that those Regulations did not apply to purely temporary employments. No positive rule of OGDCL applicable to temporary hires, and no other express legal provision, was identified as having been violated on 16.10.1996. The documentary trail, read in its entirety, shows that the reservations of the

Chairman were accompanied by his own advice to obtain ministerial approval; that prior non-advertised appointments had been made by OGDCL itself as a matter of departmental practice; and that the petitioner had, in the past, been solicited to grant “relaxation”. Without the identification of a violated positive rule, the concept of “illegality” cannot rest upon generalized norms of good governance or upon later jurisprudential refinement projected backwards in time. Criminal liability, which deprives a man of his liberty and his honour, requires a standard more exacting than administrative disapproval or policy preference. Reliance in this regard is placed upon ***Pir Mazhar-ul-Haq’s case (PLD 2005 SC 63)***, which draws the line between administrative propriety and criminal liability with admirable clarity.

11. Needless to mention that the concept of “dishonesty” or “fraud”, which forms the very root of corruption-related offences, cannot be treated as a vague notion but must be applied in its precise legal sense. As stated in ***Alridge and Parry on Fraud (2nd Edn., p. 1002)***, dishonesty embodies a composite standard requiring that the conduct of the accused must deviate from generally accepted standards of honest behaviour, both objectively and as perceived by the accused himself, and must further transgress the limits of what he was legally entitled to do. It follows that mere irregularity, an error of judgment, or an administrative deviation does not, *ipso facto*, amount to dishonesty, unless accompanied by a conscious and blameworthy state of mind. In the absence of any established corrupt or dishonest conduct on the part of the accused, the prosecution is left only with the element of alleged illegality, which, standing alone, is insufficient to sustain criminal liability under Section 3(1)(d) of the Ehtesab Ordinance, 1996 or, more pertinently, under Section 3(2)(e) of the Holders of Representative Offices (Punishment for Misconduct) Order, 1977 (President’s Post-Proclamation Order No. 16 of 1977). The law maintains a clear and principled distinction between mere illegality

and culpable dishonesty, and it is only the latter, when proved, that attracts penal consequences. Equally indispensable is the requirement of *mens rea*, which constitutes the second pillar of criminal liability. It is now firmly settled through the precedents of this Court that even where an act is shown to be without lawful authority, criminal culpability does not arise unless it is accompanied by conscious knowledge of illegality and a deliberate intention to secure wrongful gain or to inflict wrongful loss. In **State v. M. Idrees Ghauri (2008 SCMR 1118)**, it was held that the wrongful exercise of authority is not actionable unless driven by criminal motivation, requiring awareness that the act is unlawful coupled with intentional misconduct. That principle was reaffirmed in **Wahid Bakhsh Baloch v. The State (2014 SCMR 985)**, wherein it was observed that an accused cannot be held guilty unless he knowingly acts against the law or against established practice, and that reliance upon the advice of a competent authority negates the existence of *mens rea*. Applying these settled principles, the facts of the present case disclose no conscious or actual knowledge on the part of the accused that the temporary appointments in OGDCL, or the relaxation of the rules, were illegal. The advice of the Chairman himself, which accompanied the file, pointed towards the obtaining of ministerial approval. The prior practice of the Corporation had been consistent with non-advertised appointments. The petitioner acted upon the record, on the file, and in the open. In these circumstances, even if any procedural irregularity be assumed for the sake of argument, the absence of *mens rea* renders the attribution of criminal liability untenable, for the essential ingredient of a guilty mind remains wholly unestablished.

12. The record further discloses no evidence of bribery, personal gain, displacement of meritorious candidates, or any quantified loss to the public exchequer. The conduct of the petitioner, though perhaps arguably imprudent in hindsight, was

openly recorded on the official file and was aligned with the departmental practice that prevailed at the relevant time. As has been held in the authorities cited *supra*, criminal culpability for the wrongful exercise of authority requires proof of knowledge of illegality or of a corrupt or dishonest motive. The prosecution, despite the production of seven witnesses and extensive documentary material, failed to establish such a state of mind. The reasoning of the dissenting opinion, which we endorse, persuasively concludes that neither the “corrupt or dishonest means” limb nor the “illegality” limb of the charged offences was substantiated by evidence capable of supporting a conviction beyond reasonable doubt.

13. At this point it is essential to articulate, with full clarity, the principled dichotomy that the criminal law maintains between administrative impropriety and criminal liability. The two are not coextensive, and they are not interchangeable. Administrative impropriety, even where it shades into irregularity or imprudence, belongs to the domain of service law, departmental accountability, disciplinary proceedings, and, in appropriate cases, administrative review by the superior courts. It does not, of itself, translate into criminal guilt. Criminal liability, by contrast, requires the concurrence of an *actus reus* clearly defined by a pre-existing penal law and a *mens rea* established by evidence beyond reasonable doubt. To blur the line between the two is to confuse two different species of accountability and, more seriously, to permit the criminal process to be deployed against conduct that was never, in the contemplation of the law, criminal at all. This Court has been at pains, in a succession of judgments, to caution against that confusion. Where a public functionary acts openly, upon the file, after noting and consultation, in accordance with departmental practice, and in the absence of any proven corrupt motive or personal enrichment, the appropriate corrective mechanism, if any is called for, lies in the administrative and disciplinary sphere. To

subject such a functionary to the full weight of the criminal law, and to the stigma and the deprivation that flow from a criminal conviction, is to inflict a penalty disproportionate to the wrong, and to erode the very distinction that the rule of law is meant to preserve. The present case, we regret to observe, exemplifies precisely that confusion.

14. We come now to the scope of appellate interference with a judgment of acquittal, which is one of the most settled yet most carefully guarded areas of our criminal jurisprudence. Basic principle of criminal jurisprudence is that the accused is the favorite child of law; the substratum of this concept is based on farsightedness and prudence. For being favorite, the law gives it certain rights and privileges, one of such is "*Double presumption of innocence*"; firstly, the presumption of innocence available to the accused under the fundamental principle of criminal jurisprudence that every person shall be presumed to be innocent unless he is proved guilty by a competent court of law. Secondly, the accused having secured acquittal, the presumption of their innocence is further reinforced, reaffirmed and strengthened by the trial court. The proposition before this court is the accused was convicted by the trial court, however the High Court on appeal acquitted him of the charge. Where a trial court has convicted an accused, but an appellate court later reassesses the entire record and acquits him, the presumption of innocence is not only reinstated, but it is reinforced with greater strength than in an ordinary acquittal by a trial court at first instance. The accused then stands clothed with what has, with felicitous accuracy, been described as a *double presumption of innocence*: the original presumption that the law confers upon every person, and the judicial endorsement of that presumption by a higher court that has engaged with the evidence afresh. For this Court, sitting in further appeal, to disturb that double presumption, something extraordinary must be shown, not merely the possibility of another view, however reasonable. The

controlling authority in this regard remains the celebrated decision of this Court in ***Mamaraz Khan v. The State (PLD 1985 SC 11)***, wherein it was laid down, in clear and enduring terms, that an acquittal is not to be interfered with as a matter of routine; that the appellate court is not to substitute its own view merely because another conclusion on the same evidence is possible; that interference is warranted only in exceptional circumstances where the acquittal is shown to be perverse, artificial, shocking, or wholly unreasonable, or where it results in grave miscarriage of justice; and that, unless there is clear misreading or non-reading of material evidence, or the conclusions drawn are such that no prudent person could have reached them, the acquittal must be allowed to stand. The principle has since been consistently reaffirmed, including in ***State v. Abdul Khaliq (PLD 2011 SC 554)***, which underscores judicial restraint as the cornerstone of appellate review in acquittal cases.

Measured against this exacting standard, the impugned judgment, with respect, falls outside the permissible scope of interference. The Lahore High Court acquitted the petitioner after a full and reasoned evaluation of the entirety of the evidence, including the testimony of seven prosecution witnesses, the defence material, and the statement of the petitioner under Section 340(2), Cr.P.C. The reversal by the majority of this Court in 2016 was, however, predicated not upon any identified perversity or shocking conclusion on the part of the High Court, but upon a reappraisal of the same evidence leading to a different inference. The substitution of view, however plausible that view may be, does not meet the threshold laid down in ***Mamaraz Khan*** (ibid). There is no demonstrable finding in the majority judgment that the acquittal was impossible, or absurd, or based upon a gross misreading of the record. The appellate interference, in the result, effectively converted the limited jurisdiction of this Court in a second appeal into the functional equivalent of a full retrial. Such

a course transgresses the settled boundaries of appellate power, undermines the sanctity of the acquittal, and erodes the double presumption of innocence to which the petitioner was, and remains, entitled. The majority judgment failed to identify any of the exceptional features that **Mamaraz Khan (ibid)** demands; instead, it substituted a preferred inference drawn from selective aspects of the record. This misapplication of the settled standard itself warrants correction in review.

15. It is a well-settled principle that the power of this Court to review a judgment in a criminal case is limited, though, as already observed, not toothless. An error, to warrant review, must be apparent on the face of the record; but such an error, by itself, does not in every case justify interference. To attract correction in review, the error must not only be manifest, it must also have a material bearing upon the ultimate outcome of the case. Reliance in this regard is placed upon **Sikandar Hayat and another v. The State and others (PLD 2020 SC 559)**. The present matter discloses not one but a confluence of such errors. A constitutional bar under Article 12 was left wholly unaddressed, with the consequence that the conviction has been sustained under a statute that the Constitution forbids to be applied retrospectively. The rule of strict construction of penal statutes was passed over. Material evidence and available defences were insufficiently examined, and substantial parts of the defence record were not brought into the reasoning. The well-settled restraints upon the reversal of an acquittal were disregarded. The principled dichotomy between administrative impropriety and criminal liability was blurred. The essential ingredient of *mens rea* was not established by evidence. Each of these errors is, in itself, a ground of concern. Taken together, they are apparent, substantial, and outcome-determinative. The dissenting opinion authored by our learned brother, *Umar Ata Bandial, J.*, cogently identifies these grounds and supports the restoration of the acquittal. We find ourselves in

respectful agreement with that dissenting opinion, and we adopt its reasoning as our own.

16. For the foregoing reasons, this Criminal Review Petition is allowed. The majority judgment dated 20.01.2016 passed by this Court is set aside. The judgment dated 13.06.2002 of the learned Lahore High Court, Lahore in Criminal Appeal No.1912 of 2000, acquitting the appellant, is restored. Appellant Anwar Saif Ullah Khan is acquitted of the charge in this case. His bail bonds, if any, are hereby discharged. All adverse consequential orders flowing solely from the conviction shall stand vacated, subject to law.

Judge

Judge

Judge

Islamabad

03.02.2026

Muhammad Subhan Malik/-

Approved for Reporting